

**BY-LAWS
OF
SPRINGRISE FOUNDATION, INC.**

A NEW JERSEY NONPROFIT CORPORATION

**Article I
PURPOSE**

Springrise Foundation, Inc., (the “**Corporation**”), is organized exclusively for the purpose of supporting students in higher education in their endeavors for academic success in the United States. The Corporation aims to empower students to become self-confident and socially conscious, life-long learners and to pursue impactful careers personal to themselves by providing the students with mentorships, academic support, scholarships, and other comprehensive resources. In addition, the Corporation shall be permitted to undertake any other lawful activity permitted under the New Jersey Nonprofit Corporation Act, 15A:1-1 et seq., as it may be amended from time to time (the “**Act**”) other than for pecuniary profit.

**Article II
SEAL**

The Corporation may have a seal with the name of the Corporation, the year of its organization, and the words “**Corporate Seal**”, “**Nonprofit**” and “**New Jersey**” thereon.

**Article III
MEMBERS**

The Corporation shall not have members.

**Article IV
TRUSTEES**

1. **NUMBER, TERM OF OFFICE AND REMOVAL.** The Board of Trustees of the Corporation (the “**Board**”) shall consist of at least three (3) individuals (each, a “**Trustee**” and collectively, the “**Board**” or the “**Trustees**”). The Trustees shall be elected at the annual meeting of the Board, and each Trustee shall be elected to serve for a term of three (3) years hence, or until his or her successor shall have been elected and qualified, or until his or her earlier resignation or removal. No Trustee shall be elected except upon a vote of a majority of the entire Board. Any Trustee may be removed, either with or without cause, and his or her successor elected, by a vote of the majority of the entire Board in attendance at a regular meeting or a special meeting of same called for such purpose. Any vacancy occurring in the Board may be filled for the unexpired term by a vote of a majority of the remaining members of the Board at regular meeting or a special meeting called for such purpose, even though less than a quorum, or

by a sole remaining Trustee.

2. **DUTIES AND POWERS.** The Board shall have the control and management of the affairs of the Corporation and shall exercise all such powers of the Corporation, and do all such lawful acts and things necessary or expedient in the control and management thereof. The Board may adopt such rules and regulations for the conduct of their meetings and the management of the Corporation as they may deem proper, so long as same are not in conflict with these By-Laws, the Act, or other applicable law.

3. **ANNUAL AND REGULAR MEETING.** Meetings of the Board shall be held at the office of the Corporation or at any other place that the Board shall prescribe by resolution. The annual meeting of the Board shall take place on the first Wednesday in December of each year or such other date and time as is designated by the President of the Corporation by notice to the Trustees. At such annual meeting, the Board shall elect a President, Secretary, Treasurer, and any other officers it determines to be appropriate, and conduct such other business as may properly come before the Board. The Board may provide, by resolution, the time and place, either within or without the State of New Jersey for the holding of additional regular meeting of the Board without other notice than such a resolution.

4. **SPECIAL MEETINGS.** Special meetings of the Board may be called by or at the request of the President or any two Trustees. The person or persons authorized to call special meetings of the Board may fix the time and place for holding any special meeting of the Board called by them. Notice of any special meeting shall be given to each Trustee at least five (5) days prior to each such special meeting. Such notice may be given by mail, e-mail, telephone or in person. The Board may meet to transact business at any time and place without such notice, provided all Trustees shall be present, or if any Trustee or Trustees are not present, such Trustee(s) have waived notice of such meeting in writing. A majority of Trustees shall constitute a quorum for the transaction of business at any meeting of the Board, but the Trustee or Trustees present, if less than a quorum, may adjourn any meeting from time to time until such quorum shall be present. Except as is otherwise specifically provided herein, all matters coming before the Board shall be determined and decided by the majority vote of the Trustees present and voting in the presence of a quorum.

5. **QUORUM.** A majority of the Trustees shall constitute a quorum for the transaction of business at any meeting of the Board, unless provided otherwise herein.

6. **ACTION WITHOUT MEETING.** Action required by law to be taken at a meeting of the Board or any action which may be taken at a meeting of the Board, may be taken without a meeting if consent in writing or by electronic mail, setting forth the action so taken shall be signed by all of the Trustees.

7. **ACTION BY TELEPHONIC CONFERENCE.** The Board or any committee designated by the Board may participate in a meeting of the Board or such committee by means of conference telephone or similar communications equipment by means of which all persons

participating in the meeting can hear each other, and participation in such meeting shall constitute presence in person at such meeting.

8. **COMPENSATION.** The Board of Trustees shall serve as such without compensation.

Article V COMMITTEES OF THE BOARD

1. **COMMITTEES IN GENERAL.** The Board, by resolution adopted by a majority of the Trustees at a meeting of same, when a quorum is present, may designate one or more committees, to the extent provided in said resolution, to have and exercise the authority of the Board in the management of the Corporation, but the designation of such committees and the delegation thereto of authority shall not operate to relieve the Board or any individual Trustee of any responsibility imposed upon the Board or any individual Trustee in accordance with these By-Laws, the Act or other applicable law. Each committee shall consist of two (2) or more Trustees. Each member of a committee shall continue in such position until the next annual meeting of the Corporation or until his or her successor is appointed by the Board, unless the committee shall be sooner terminated by the Board, or unless such member be removed from such committee by the Board.

2. **EXECUTIVE COMMITTEE.** An Executive Committee shall be appointed by resolution adopted by the Board. The Executive Committee shall be selected from of members of the Board and shall have all the powers of the Trustees, except such as may be expressly reserved by resolution of the Board. It shall not have the power to appoint members to fill vacancies in the Board or in its own number. It shall act only in the intervals between meetings of the Board.

3. **QUORUM.** Unless otherwise provided by the Board in designating a committee, a majority of the whole committee shall constitute a quorum, and the act of a majority of the members of the committee present at a meeting at which a quorum is present shall be an act of the committee.

Article VI OFFICERS

1. **ELECTION.** The Board, at its annual meeting, shall elect a President, Secretary and Treasurer. The Board may also elect such other officers as the needs of the Corporation may from time to time require. All officers shall serve for one (1) year, or until the election and qualification of their successors or until their earlier resignation or removal, subject to the power of the Board to remove any officer with or without cause by a majority vote of the Trustees at a special meeting of same called for such purpose, when a quorum is present. Any two or more offices may be held by the same person, but no officer shall execute, acknowledge, or verify any instrument in more than one capacity if such instrument is required by law or by the By-Laws to

be executed, acknowledged, or verified by two or more officers. The officers shall not receive any compensation for their services as officers. Appointment or election to a corporate office shall not, of itself, establish or create contract rights.

2. **PRESIDENT.** The President shall be the chief executive officer of the Corporation. The President shall have and exercise general charge and supervision of the affairs of the Corporation, shall preside at meetings of the Board and shall be an ex officio member of all standing committees and as such shall be a regular member of such committees for all purposes. The President shall have all powers and shall perform all duties commonly incident to and vested in the office of chief executive officer of a corporation. The President shall also perform such other duties as the Board shall designate from time to time.

3. **VICE PRESIDENT.** In the absence of the President, or in the event of the President's inability or refusal to act, the Vice President (or in the event there be more than one Vice President, the Vice President in order of seniority) shall perform the duties of the President, and when so acting, shall have all the powers of and be subject to all the restrictions upon the President. Any Vice President shall perform such other duties as from time to time may be assigned to him or her by the President or the Board.

4. **SECRETARY.** The Secretary shall cause notices of all meetings to be served as prescribed in these By-Laws and keep or caused to be kept the minutes of all meetings of the Board. The Secretary shall have charge of the seal of the Corporation. The Secretary shall perform such other duties and possess such other powers as are incident to that office or as are assigned by the Board.

5. **TREASURER.** The Treasurer shall have the care and custody of all the funds and securities of the Corporation, and shall perform such other duties as the Board may from time to time prescribe. The Treasurer shall keep or cause to be kept full and accurate regular books of account.

6. **ASSISTANT SECRETARIES AND ASSISTANT TREASURERS.** At the request of the Secretary or in the Secretary's absence or disability, one or more Assistant Secretaries designated by the Secretary or the Board shall have all the powers of the Secretary for such period as the Secretary or the Board may designate or until the Secretary or the Board revokes such designation. At the request of the Treasurer or in the Treasurer's absence or disability, one or more Assistant Treasurers designated by the Treasurer or the Board shall have all the powers of the Treasurer for such period as the Treasurer or Board may designate or until the Treasurer or the Board revokes such designation. The Assistant Secretaries and Assistant Treasurers, in general, shall perform such duties as shall be assigned to them by the Secretary or the Treasurer, respectively, or by the President or the Board.

Article VII WAIVERS OF NOTICE

Any notice required by these By-Laws, the Certificate of Incorporation, the Act or other applicable law may be waived in writing by any Trustee entitled to such notice. The waiver or waivers may be executed before, at, or after the event with respect to which notice is waived. Each Trustee attending a meeting without protesting the lack of proper notice prior to the conclusion of said meeting, shall be deemed conclusively to have waived such notice.

Article VIII

INDEMNIFICATION AND LIABILITY OF CORPORATE AGENTS

No contributor to the Corporation shall be liable for the acts of the Corporation, its Board, its agents, or its representatives. The Corporation shall, to the fullest extent permitted by law and more particularly by N.J.S.A. 15A: 3-4, indemnify any person who was, is, or shall be an officer, trustee, employee of the Corporation and any person who was, is or shall be an officer, trustee, employee of any other enterprise and who is acting as such at the request of the Corporation or the legal representative of any such an officer, trustee, employee or agent, for any action taken or failure to act on behalf of the Corporation. In addition to the above, the Corporation may purchase and maintain insurance on behalf of each such officer, trustee, or employee against or incurred by such officer, trustee, employee in his or her capacity as such, whether or not the corporation would have the power to indemnify such agent against such liability under the provision of N.J.S.A. 15A: 3-4.

Article IX

FISCAL YEAR

The fiscal year of the Corporation shall be determined by the filing of the first Federal corporate income tax return.

Article X

BOOKS AND RECORDS

The Corporation shall keep correct and complete books and records of all Corporation business, including minutes of all regular and special meetings of the Board, all of which shall be on file at the principal office of the Corporation, which shall be subject to the Records Retention Policy, if adopted by the Board.

Article XI

CONTRACTS, CHECKS, DEPOSITS, FUNDS

1. **CONTRACTS.** The Board may authorize any officer or officers, agent or agents of the Corporation, in addition to the officers so authorized by these by-laws, to enter into any contract or to execute and deliver any instrument in the name of and on behalf of the

Corporation, any such authority may be general or confined to specific instances, which shall be subject to the Records Retention Policy, if adopted by the Board.

2. **CHECKS, DRAFTS, ETC.** All checks, drafts, or orders for the payment of money, notes or other evidences of indebtedness issued in the name of the Corporation shall be signed by such officer or officers or agent or agents of the Corporation and in such manner as shall from time to time be determined by resolution of the Board, which shall be subject to the Records Retention Policy, if adopted by the Board.

3. **DEPOSITS.** All funds of the Corporation shall be deposited from time to time to the credit of the Corporation in such banks, trust companies, or other depositaries as the Board may select.

Article XII

PROVISIONS LIMITING THE ACTIVITIES OF THE CORPORATION AND THE DISPOSITION OF ITS ASSETS UPON DISSOLUTION

1. **ACTIVITIES OF CORPORATION.** The Corporation is not organized for profit, but is organized and shall operate exclusively for public, charitable, scientific, and educational purposes. No part of the net earnings or income or property of the Corporation shall inure to the benefit of any donor, trustee, officer, or individual having a personal or other interest in the activities of the Corporation. No substantial part of the activities of the Corporation shall be engaged in carrying on propaganda or otherwise attempting to influence legislation, and this Corporation shall not participate or intervene in (including the publishing or distributing of statements) and political campaign on behalf of any candidate for any public office.

2. **LIQUIDATION OF CORPORATION.** In the event of the liquidation of the Corporation, all of its assets, after payment of its just debts, shall be distributed to a public or private organization, or organizations, which shall enjoy tax-exempt status under Section 501(c)(3) of the Internal Revenue Code of 1954 as amended.

Article XIII

AMENDMENTS

These By-Laws may be altered, amended, or repealed by the majority vote of the entire Board at a special meeting of same, called for such purpose.